

25LBCV01263 25LBCV01263

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-09-24

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Case Number: 25LBCV01263 Hearing Date: September 24, 2026 Dept: S28

BACKGROUND

On April 22, 2025,

Plaintiff filed a Song-Beverly Act complaint for alleged defects with a 2024 Honda Accord vehicle. On June 30, 2026, the court granted the unopposed motion for summary judgment in favor of American Honda Motor Co., Inc. (Honda). The court entered judgment on July 9, 2026. On July 27, 2026, the court struck Plaintiffs filed but unserved statement of disqualification.

On August 21, 2026,

Plaintiff filed a motion for relief from Summary Judgment. Honda filed opposition on September 11, 2026. The court filing system shows no reply.

DISCUSSION

Applicable Law

“Both a motion for new trial under section 1008 and a motion for relief from the judgment under section 473 are appropriate means for seeking trial court relief from an order granting summary judgment or adjudication.” (Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342.)

Analysis

Plaintiff moves

for relief under Code of Civil Procedure section 473 subdivision (b). Plaintiff maintains both a mandatory and discretionary basis of relief. Plaintiff essentially moves for relief on grounds of mistake, inadvertence and/or

excusable neglect in failing to oppose the motion for summary judgment. Honda in opposition challenges the sufficiency of any showing for relief. Honda also challenges the timing of the motion and contends any relief would be futile either way.

Although not specifically identified, a party seeking relief from summary judgment may also proceed under the guise of a motion for new trial on the basis of “[a]ccident or surprise, which ordinary prudence could not have guarded against.” (Code Civ. Proc., § 657(3).) The court in its discretion can consider such a basis for relief. (Sole Energy Co. v. Petrominerals Corp. (2005) 128 Cal.App.4th 187, 194; Passavanti v. Williams (1990) 225 Cal.App.3d 1602, 1610.) Nevertheless, such a motion was required less than 15 days following the entry of the judgment. (Code Civ. Proc., § 659.) Plaintiff made no such motion, and any attempt would be untimely either way. Plaintiff also makes no motion under the reconsideration statute, which would also be untimely. (Code Civ. Proc., § 1008.)

Plaintiff first presents the mandatory relief provision under Code of Civil Procedure section 473, subdivision (b). The position finds support in that the granting of a summary judgment due, at least in part, to the lack of any filed opposition or appearance at the hearing as a result of counsel oversight constitutes a dismissal without an opportunity to present the merits of the claim. (Avila v. Chua (1997) 57 Cal.App.4th 860, 868 disapproved of by The Urban Wildlands Group, Inc. v. City of Los Angeles (2017) 10 Cal.App.5th 993.) The Urban Wildlands Group, Inc. case however specifically limited the mandatory provisions to default judgments and dismissal, and declined to more expansive definition provided to summary judgment orders. Both holdings were issued by the Second Appellate District, with the later case taking precedent. (Id. at p. 1000.) Other courts are also in accord with The Urban Wildlands Group, Inc. holding. (Prieto v. Loyola Marymount University (2005) 132 Cal.App.4th 290, 297; Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 228–229; Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC (2013) 219 Cal.App.4th 1086, 1090-1091.)

The court therefore declines to utilize the mandatory relief standard, and considers the motion under the discretionary relief provisions. “While the motion lies within the sound discretion of the trial court, ‘the trial court’s discretion

is not unlimited and must be exercised in conformity with the spirit of the law and in a manner to subserve and not to impede or defeat the ends of substantial justice.' (Citation.) The law strongly favors trial and disposition on the merits. Therefore, any doubts in applying section 473 must be resolved in favor of the party seeking relief. When the moving party promptly seeks relief and there is no prejudice to the opposing party, very slight evidence is required to justify relief. We will more carefully scrutinize an order denying relief than one which permits a trial on the merits." (Mink v. Superior Court , supra, 2 Cal.App.4th at p. 1343; Henderson v. Pacific Gas & Electric Co., supra, 187 Cal.App.4th at pp. 229-230; Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC, supra, 219 Cal.App.4th at pp. 1092-1093.)

"In determining whether the attorney's mistake or inadvertence was excusable, the court inquires whether a reasonably prudent person might have made the same mistake under the same or similar circumstances. (Citation.). Thus, discretionary relief is available only from attorney error that is 'fairly imputable to the client, i.e., mistakes anyone could have made.' [Citation.] 'Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.' ...

"The terms mistake, inadvertence, surprise, and excusable neglect warranting relief under section 473(b) are defined as follows: 'Mistake is not a ground for relief under section 473, subdivision (b), when 'the court finds that the "mistake" is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law....' (Citation.) Further, '[t]he term "surprise," as used in section 473, refers to some condition or situation in which a party ... is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.' (Citation.) Finally, as for inadvertence or neglect, '[t]o warrant relief under section 473 a litigant's neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief." (Citation.) ...

“Generally speaking, the trial court's ruling on a discretionary motion for relief is reviewed for an abuse of discretion. (Citation.) Since ‘the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.’(Citation.) For that reason, ‘a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” (Citation.) (Henderson v. Pacific Gas & Electric Co., supra, 187 Cal.App.4th at pp. 229–230.)

The court finds the excuse, e.g. the failure to present any opposition due to internal operational error of counsel, meets the standard for discretionary relief. Counsel presumably intended to oppose the motion on the substantive merits of the motion. [Declaration of Larry Chae.] The motion was filed less than two months from the date of the order granting the motion. The timeline is reasonable.

The motion was granted at least in part due to the lack of opposition. Requiring Plaintiff to pursue a potential legal malpractice action against counsel remains the lesser alternative. As cited above, public policy favors relief and adjudication on the merits, when the oversight of counsel improperly imputes said error on the client, when the client is otherwise not at fault. The court finds nothing in the record indicating any improper conduct by the client in deferring to counsel for the handling of the opposition to the motion for summary judgment.

The court otherwise declines to consider the futility positions challenging the merits of any potential opposition. Any challenges can be addressed in a substantive reply to the opposition.

The court therefore grants the motion.

The court vacates the order granting summary judgment. Honda may reserve a new hearing date utilizing the original motion as the basis for the reservation. Any new opposition and new reply will be due pursuant to statutory guidelines of the new hearing date.

CONCLUSION

Plaintiff's motion for relief from the order for summary judgment is GRANTED.